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PART I

Acts, Ordinances, President's Orders and Regulations

GOVERNMENT OF PAKISTAN
LAW AND JUSTICE DIVISION

Islamabad, the 17th March, 2022

No. F. 2(1)/2022-Pub.—The following Ordinance Promulgated on 16th March, 2022 by the President is hereby published for general information:—

ORDINANCE NO. V OF 2022

AN

ORDINANCE

further to amend the Railway Laws

WHEREAS it is expedient further to amend the Railway Laws, for the purposes hereinafter appearing;

AND WHEREAS the Senate and the National Assembly are not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

(101)

Price: Rs.6.00

[7446(2022)/Ex. Gaz].

NOW, THEREFORE, , in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:—

1. **Short title and commencement.**— (1) This Ordinance shall be called the Railway Laws (Amendment) Ordinance, 2022.

(2) It shall come into force at once.

2. **Amendment of Article 3, P.O. No. 33 of 1962.**— In the Transfer of Railways Order, 1962 (P.O. No. 33 of 1962), in Article 3,—

(a) in clause (2), in sub-clause (a), for entry (v), the following shall be substituted, namely:—

“(v) Chief Executive Officer, Pakistan Railway;”;

(b) after clause (4), the following new clauses shall be inserted, namely:—

“(4A) The Chief Executive Officer shall be appointed by the Federal Government on such terms and conditions as may be prescribed.

(4B) The Federal Government may appoint the Chief Executive Officer from among the serving or retired officers in BPS-21 or BPS-22 of Pakistan Railways Service or from the open market.

(4C) The Chief Executive Officer shall be responsible for the overall functioning and management of Railway operations and in the discharge of his functions, he shall be directly responsible to the Railway Board.”;

(c) in clause (6), for the words “General Manager Railway Operations”, the words “Chief Executive Officer” shall be substituted; and

(d) for clause (7), the following shall be substituted, namely:—

“(7) The Secretary Railway Board shall assist the Railway Board in discharge of its functions.”.

3. **Amendment of Railway Regulatory Authority Ordinance, 2002 (XCII of 2002).**— In the Railway Regulatory Authority Ordinance, 2002 (XCII of 2002), in section 2, for clause (r), the following shall be substituted, namely:—

“(r) “railway administration” in the case of railway administered and operated by the Federal Government, means the Chief Executive Officer of Pakistan Railway and includes other offices of the Federal Government pertaining to railways;”.

DR. ARIF ALVI,
President.

RAJA NAEEM AKBAR,
Secretary.